

		distributed under the settlement, including any uncashed checks. <i>Id.</i> Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents and file a proof of service.
7	30-2024-01409560 Barroso vs. Applied Composites Holdings, LLC	The hearing on plaintiff's motion for approval is continued to November 16, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief shall be filed at least 16 days before the hearing and shall address as necessary each of the below points. The parties must provide redlined versions of all revised documents (e.g., revised settlement agreement, revised notice, revised proposed order) and any settlement provisions revised via amendment. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$400,000 PAGA settlement. The court has the following questions and comments: <u>As to the Settlement:</u> 1. The definition of "defendant" is incorrect. ¶ 2. The defendant is only "Applied Composites Holdings, LLC." No other definition will be approved. 2. The parties must confirm the final gross settlement amount, i.e., whether the escalator provision (¶ 15(c)) has been triggered. 3. The settlement incorrectly cites ¶ "13(c)" as the escalator provision. ¶ 14. 4. The release provision (¶ 19(a)) is overbroad and/or vague. It should be replaced in its entirety with the following: "Upon the Effective Date and subject to Defendant's full payment of the Gross Settlement Amount, Plaintiff, on behalf of herself, her heirs, executors, and assigns, the Aggrieved Employees, and the State of California, fully releases and discharges Defendant, and each of its subsidiaries, parent companies, successors, predecessors, and assigns, and each of their respective shareholders, officers, partners, directors, employees, agents,

		successors, and assigns (collectively, “Released Parties”) from any and all claims for civil penalties under PAGA, which were alleged or which could reasonably have been alleged based on the facts asserted in the Operative Complaint in the Action and/or in Plaintiff’s PAGA notice to the LWDA dated June 22, 2024 (“PAGA Released Claims”) that accrued during the Settlement Period, including claims for failure to pay for all hours worked, including overtime, provide all meal periods or premium compensation in lieu thereof, authorize and permit all rest breaks or premium compensation in lieu thereof, maintain accurate records, pay all vacation wages at termination, reimburse all necessary business expenses, timely pay all wages during employment and due upon separation of employment, issue complete and accurate wage statements, and for violation and/or based on California Labor Code §§ 201, 202, 203, 204, 210, 245, 246, 226, 226.3, 226.7, 227.3, 510, 512, 558, 1174, 1174.5, 1194, 1194.2, 1197, 1197.1, 1198, 2699, 2699.3, 2802, the corresponding provisions of the applicable IWC Wage Order, and all claims for attorneys’ fees and costs in connection therewith.” 5. Plaintiff’s counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 6. Plaintiff’s counsel seeks attorneys’ fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fee award that exceeds 30%. 7. Plaintiff’s counsel seeks litigation costs in the amount of \$22,626.94. ROA 54 ¶¶ 72, 82-83 Ex. 4. Paid invoices substantiating the mediation fee request (\$17,000) and expert (\$3,420) must be provided before these costs are reimbursed. 8. The court is unlikely to approve an enhancement award in excess of \$5,000 for plaintiff absent unique circumstances. Notably, an enhancement award is not intended to compensate the named plaintiff for a general release of claims. <u>As to the Notice:</u>
--	--	--

		9. The notice should be revised consistent with the above. 10. Is it correct to refer to plaintiff as “himself?” ¶ 2. 11. Explain the financial terms of the settlement, including the relative portions and amounts for the LWDA and Aggrieved Employees. ¶ 4. 12. The same issues identified above apply to the PAGA Released Claims and Released Parties. ¶ 5. 13. Does the notice need to be prepared in languages other than English? 14. Inform aggrieved employees they cannot exclude themselves from the settlement. 15. Inform aggrieved employees they will not be retaliated against for cashing their check. <u>As to the Proposed Order and Proposed Judgment:</u> 16. The proposed order (ROA 48) and proposed judgment (ROA 59) should be combined in a non-duplicative single document, i.e., “Proposed Order and Judgment.” 17. The proposed order and judgment should be revised consistent with the above. <u>As to the proposed order (ROA 48):</u> 18. Delete the following from paragraph 2: “In granting settlement approval, the Court has considered the factors identified in O’Connor v. Uber Technologies (N.D. Cal. 2016) 201 F.Supp.3d 1110, Villalobos v. Calandri Sunrise Farm LP (C.D. Cal. July 22, 2015) No. CV 12-2615 PSG (JEMx), 2015 WL 12732709, and other relevant authority providing a coherent framework for evaluating this Settlement.” Combine the remainder of paragraph 2 with paragraph 3. 19. Remove the “at least” qualifiers from paragraphs 7, 10. 20. The same issues identified above apply to the release and the released parties. ¶ 12. 21. The parties must determine whether the escalator provision has been triggered. ¶ 13. 22. Delete paragraph 16. <u>As to the proposed judgment (ROA 59):</u>
--	--	---

		23. Delete paragraph 1. 24. The operative settlement and notice (including any translations) should be identified and attached as exhibits. 25. Delete paragraph 10. 26. Add a paragraph providing: “This order shall constitute a judgment for purposes of California Rules of Court, Rule 3.769(h).” 27. Propose a date for a final accounting hearing. The court conducts final accounting hearings on Mondays at 1:30 p.m. The proposed order and judgment shall state that counsel shall submit a final administrator’s report at least 16 days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
8	30-2023-01333990 Diaz vs. Silverado Senior Living Management, Inc.	The tentative ruling is to continue Plaintiff Marlene Del Carmen Leonor Diaz’s (“Plaintiff”) Motion for Preliminary Approval of Class Action and PAGA Settlement to November 9, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys’ fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of